

MURRAY v. SUCHY, et al.

20CV45088

**PLAINTIFF'S MOTION TO AMEND AND SUPPLEMENT
COMPLAINT**

This is an action alleging, trespass, negligence, nuisance, and conspiracy. Plaintiff seeks to amend and supplement the complaint.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is **DENIED**, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

PEOPLE v. \$32,000.00

22CV45789

MOTION FOR JUDGMENT OF FORFEITURE BY DEFAULT

This is a special proceeding pursuant to H&S Code §11488 to declare certain funds seized as part of a criminal investigation forfeited. The funds were discovered during the execution of a search warrant on 03/02/21 at 5691 McCauley Road, Valley Springs, by the Calaveras County Sheriff's Department. According to the petition and supporting declarations, most of the funds (\$30,800.00) were neatly wrapped, bundled, and placed underneath a mattress in a room containing the suspect's personal effects. The balance of the funds (\$1,200.00) were located inside the suspect's wallet, which was on the mattress in question. The house was filled with cannabis plants (1,562) and a reasonably sophisticated growing operation. According to Deputy Seawell, the "street value" of the cannabis collected from the residence exceeded \$4M, removing the operation from any "personal use" exemption.

In California, there are three types of forfeiture proceedings available in conjunction with controlled substances offenses: summary forfeiture, administrative forfeiture, and judicial forfeiture. The cannabis plants were presumably subject to summary forfeiture (see H&S Code §§ 11054, 11477), but are not at issue in this petition. Assets not exceeding \$25,000 can be administratively forfeited if nobody files a claim after due notice. (H&S §11488.4(j).) For assets in excess of \$25,000, or for assets to which a claim has been made, the only option is judicial forfeiture – and for that a number of procedure safeguards must be observed. This petition may not be heard on the merits at this time, as there are procedural defects as presently constituted.

First, "the district attorney shall make service of process regarding this petition upon every individual designated in a receipt issued for the property seized." (H&S Code §11488.4(c).) Petitioner has not included a copy of the 03/02/21 receipt, but presumably it identifies at least the suspect. There is no proof of service on the suspect.

Second, "the district attorney shall cause" (1) notice of the seizure, (2) notice of any intended forfeiture proceeding, and (3) notice of the claim form process "to be served by personal delivery or by registered mail upon any person who has an interest in the seized property." (H&S Code §11488.4(c).) Deputy Rader avers that the receipt, notice and claim form "were left in a prominent place in the residence," *not* personally served on the occupant or the registered owner (who might not occupy the residence). Given that the money was found inside a residence, both the occupants and the owner are entitled to proper notice.